

ties arising from contract, but properly such, and formerly known as *uses*, cannot be engrafted upon foreign real estate. The law regulating lands in England has a *local* character. How then can a system adapted exclusively to lands in England be transplanted and attached to lands abroad? Could entails, for instance, be created where none are allowed, and if created, by what machinery could they be barred? It has been seen that in the case of copyholds, when the custom * of the manor does not allow entails of the legal estate, none can be created of the equitable, and the same principle will apply to trusts of foreign lands. The few authorities upon the subject tend to confirm this view, but there is little light to be obtained from them, and the law must be regarded as still somewhat unsettled (*a*).

(*a*) *Glover v. Strothoff*, 2 B. C. C. 33; *Nelson v. Bridport*, 8 Beav. 547; see 570; *Martin v. Martin*, 2 R. & M. 507; (in which case it did not occur either to the bar or the bench that the legal estate could be held upon the trusts of the settlement without the intervention of a sale;) *Godfray v. Godfray*, 12 Jur. N. S. 397.